

Tentative Rulings for July 6, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Molly Frabotta at (760) 393-2918
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2514180	BANK OF AMERICA, N.A. VS ROE	MOTION FOR JUDGMENT ON THE PLEADINGS BY BANK OF AMERICA, N.A.

Tentative Ruling: Motion unopposed.

The court finds that the Plaintiff/moving party has not complied with CCP § 439 as there is no Declaration that the Plaintiff has met and conferred with the Defendant in person, by telephone or videoconference.

The Motion for Judgment on the Pleadings is **continued to August 24, 2026 at 8:00 a.m.**, Department M205, for Plaintiff to meet and confer with the Defendant. Remote appearance is allowed.

1. Plaintiff is to properly meet and confer in the manner required by CCP § 439(a).
2. Plaintiff and Defendant are to meet and confer
3. 10 days before the next hearing, Plaintiff is to file a Declaration stating the efforts made to meet and confer.
4. Plaintiff is to give notice.

2.

CASE #	CASE NAME	HEARING NAME
CVME2516180	WELLS FARGO BANK, N.A. VS CHAMBERLAIN	MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED BY WELLS FARGO BANK, N.A.

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.

Responding party: Defendant Suzanne Chamberlain

Motion filed: 5/26/26

Opposition filed: 6/17/26

Reply filed: none

On April 1, 2026, Wells Fargo served Defendant with Requests for Admissions, Set One. The responses were due thirty-five (35) days later. Defendant never served responses. Wells Fargo brings the instant motion to deem the Requests for Admissions admitted.

Motion is **GRANTED**. Requests for Admission propounded on 04/01/2026 are deemed admitted. Monetary sanctions are mandatory. (CCP § 2033.280(c).) However, Plaintiff is “waiving all sanctions that may be awarded by the Court.” (Notice of Motion p.1:28.). Court to sign the proposed order.

3.

CASE #	CASE NAME	HEARING NAME
CVME2604269	MIDLAND CREDIT MANAGEMENT INC. VS ALDAMA	MOTION TO COMPEL ARBITRATION BY RONALD ALDAMA

Tentative Ruling:

Moving party: Defendant Ronald Aldama

Motion filed by Plaintiff: June 6, 2026

Opposition: None

CCP §1281 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (CCP §1281.2.) “A petition to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.”” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 411 (“*Rosenthal*”) *quoting Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 *citing Rosenthal, supra*, 14 Cal.4th at p. 413.)

Here, the court considered that the parties specifically agreed by contract that “[a]rbitration may be requested any time, even where there is a pending lawsuit, unless a trial has begun or a final judgment entered. Neither you nor we waive the right to arbitrate by filing or serving a complaint, answer, counterclaim, motion, or discovery in a court lawsuit. To choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by submitting the required AAA forms and requisite filing fees to the AAA.” The Court **GRANTS** the motion to compel Midland Credit Management to arbitrate its claims. Plaintiff must initiate the arbitration proceedings with AAA, including paying any of the related filing fees required, within 30 days of this court’s order. Just as the contract provides that Defendant can move for arbitration at any time, it also provides that since this action is for the collection of a debt, Defendant is responsible to pay his share of the filing fees.

In addition, the court stays these proceedings pending Defendant’s timely election to pursue arbitration of this dispute pursuant to the terms of this court’s order.

The Court will set a status review hearing re: status of Arbitration on December 1, 2026 at 8:00 a.m. in Dept. M205, Remote appearance is allowed.